

Tejpal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 September 2021 · WRIT - C No. 20415 of 2021 · WRIT - C No. 20415 of 2021 · **Writ disposed; officer to decide Samadhan Yojna or Clause 6.14 instalments; recovery stayed four weeks.**

HEADNOTE

On a pumping-set consumer's writ against a post-disconnection arrears demand after an asserted Surcharge Samadhan Yojna deposit, the Allahabad High Court, without deciding entitlement, disposed of the petition with liberty to represent to the named officer. That officer must pass a speaking order on the settlement scheme and, if it does not apply, consider deposit of the balance in instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005, within three weeks; recovery stayed for four weeks or until that decision.

FACTUAL SUMMARY

The petitioner held a 7.5 kW pumping-set connection. He admitted delayed bill payment and claimed to have deposited Rs 32,715 under a Surcharge Samadhan Yojna. The licensee demanded Rs 1,10,093 on 23 June 2021 and disconnected supply on 15 July 2021. It contended that the settlement sum was not deposited in time and that Clause 6.14 of the U.P. Electricity Supply Code, 2005 permitted instalments. The petitioner offered to apply for instalments while recovery continued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment of arrears after failed surcharge settlement

HOLDING

Without deciding whether the consumer was entitled to the Surcharge Samadhan Yojna or to restoration of a pumping-set supply disconnected for arrears, the Court disposed of the writ with liberty to represent to the named officer. That officer must decide by speaking order—giving reasons if the settlement scheme is inapplicable—and in the alternative consider deposit of the balance in instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005, within three weeks of communication. Recovery under the impugned demand remains in abeyance for four weeks or until that decision, whichever is earlier; amounts already deposited are to be taken into account. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Where a consumer's claim to a surcharge-settlement scheme is disputed and supply has been disconnected for arrears, the Court did not grant instalments itself but directed the named officer, if the scheme does not apply, to consider deposit of the balance under Clause 6.14 of the Supply Code, with a short stay of recovery pending that speaking order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO THE SURCHARGE SAMADHAN YOJNA

Left to a speaking order of respondent no. 3; reasons required if the benefit is refused. ¶ 1

NOT DECIDED — DEPOSIT OF THE BALANCE IN CLAUSE 6.14 INSTALMENTS

To be considered in the alternative if the settlement scheme does not apply; not granted on the writ. ¶ 1

NOT DECIDED — RESTORATION OF THE DISCONNECTED PUMPING-SET SUPPLY

Supply was disconnected on 15.07.2021; the Court stayed recovery only, without directing reconnection. ¶ 1

